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December 16, 2019

Honorable Robert H. Gardner, J.S.C.
Essex County Superior Court
470 Martin Luther King Jr. Boulevard, 4th Floor
Newark, NJ 07102

Re: B.B. v. Mell et al
Docket No.: ESX-L-7200-19

Dear Judge Gardner:

Please accept the letter brief in lieu of a more formal submission on behalf of S. Bradley Mell (hereinafter "Mell") in opposition of the Plaintiff's Order to Show Cause seeking preliminary relief which is scheduled to be heard before Your Honor on December 17, 2019.

Procedural Background

By way of background, this initial Order to Show Cause was filed by Plaintiff's attorney on November 26, 2019. In the initial application the Plaintiff was seeking preliminary injunctive relief. This office was not aware of the same until December 5, 2019. That original Order gave Mell until December 10, 2019 to file a written response. Knowing that our communication was limited, this office filed an adjournment

request that was granted, and the matter was then to be heard on January 12, 2020. Our client is currently incarcerated in Allenwood Penitentiary in Allenwood, PA. Until this firm receives approval from the prison, our communication with Mell has been limited to very short non-confidential phone calls. Following a letter from Plaintiff's attorney, the matter was then rescheduled for December 17, 2019. An Order to that effect was entered on December 13, 2019 giving this office essentially one day to file a written response.

Legal Argument

The granting of the preliminary relief sought for by the Plaintiff is governed by the well-established factors set forth in Crowe v. DeGioia, 90 N.J. 126 (1982). The four factors set forth by the New Jersey Supreme Court when considering to issue and order granting temporary restraints or preliminary release are as follows: (1) is the relief sought necessary to prevent irreparable harm, (2) is the legal right settled, (3) has the applicant made a preliminary showing of a reasonable probability of success on the merits, and (4) the relative hardships to the parties in granting or denying the application. Id. at 133. In order for the court to grant the order, all four prongs of the test must be met.

- 1. Plaintiff has not made a showing that she will suffer Irreparable Harm if preliminary relief is not granted.**

As noted by the Court in Crowe, the first factor in determining if the preliminary relief is appropriate is that the Plaintiff must show it will incur irreparable harm if the injunction is not entered. Id. at 132. "Harm may be considered irreparable if it cannot be remedied by monetary damages." City of Orange Tp. Bd. of Educ. v. City of Orange Tp., 451 N.J. Super. 310 (App Div. 2017) citing Crowe at 133. The entire basis of the Plaintiff's underlying action and Order to Show Cause revolves around monetary damages. At this time the Plaintiff is simply asking for Mell's properly negotiated business buyouts be withheld and placed in court just in case there are subsequent monetary damages. Not only can this alleged harm to the Plaintiff be redressed by monetary damages, to withhold this income from Mell would in turn cause irreparable harm to Mell's wife and children. While Mell is currently incarcerated, this income is the only source of income the family receives. If this income was not received, it would cause irreparable harm to Mell's family in the form of being unable to pay for daily necessities. Furthermore, any transfer of assets initiated by Mell to his children only shows his intent to provide for his children and any assertion that such alleged transfers evidence an "intent to continue to dissipate assets" is completely and utterly baseless. It is clear that the Plaintiff has not and

will not suffer any irreparable harm from the court's denying this relief.

2. Plaintiff has failed to establish a likelihood of success on the merits.

In order for the Plaintiff to prevail they must also make a "preliminary showing of a reasonable probability of ultimate success on the merits." Crowe at 133. The Plaintiff has not presented any evidence, aside from the Defendants guilty pleas in a criminal matter, that would show a reasonable probability of success. The certifications submitted in support of the present application are made without any personal knowledge to the facts set forth and present no evidence other than Mell owning significant assets at one time. Moreover, the complaint includes multiple causes of action alleging Fraudulent Transfers were made by Mell. No evidence has been presented that suggests that if any transfers were made, they were done fraudulently, certainly no evidence that would provide a reasonable probability of ultimate success of the merits. More specifically, the two transfers mentioned in the Plaintiff's papers include the sale of a plane and the sale of Bedminster, New Jersey realty. Both of those assets, while held in Trust not individually by Mell, were liquidated in an effort to pay off the debt that encumbered both assets prior to Mell serving his prison sentence. The proceeds were then paid to the Trust whose

beneficiaries are Mell's children. There is absolutely no evidence to suggest an alternative intent.

3. The balancing of relative hardships does not weigh in favor of the Plaintiff.

The final factor to consider is the relative hardship to both Plaintiff and Defendant when granting or denying the application. Id. at 134. The Plaintiff cites as their hardship a loss of any recourse should Mell be found liable in this civil case. In the simplest of terms, the Plaintiff is merely asking the court to hold money for her in case there is a judgment entered against Mell. However, the hardship to the Defendants as a whole is much greater. Should the Plaintiff be successful in taking away the Defendants' sole source of income, the Gulfstream buyout payments, the result would be devastating for Mell's ex-wife and children. Mell's ex-wife has limited capacity to earn and income, as such the family completely relies on these payments to cover ordinary day to day expenses.

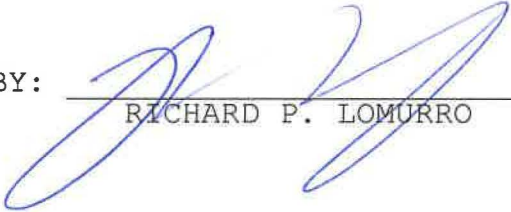
Plaintiff's brief continually cites to the Crowe decision to suggest that relief should be granted to maintain the status quo, but the very crux of the Plaintiff's application is to upset the status quo. Maintaining the status quo would mean allowing the lawful and legitimate business and family decisions that Mell and his family have put in place well before this

litigation to stand and continue to accomplish what those decision were meant to accomplish.

Based on the forgoing, the Plaintiff has clearly not met the standard by which this preliminary relief can be granted, as such, the Plaintiff's application should be denied in its entirety.

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Attorneys for Defendant, S. BRADLEY MELL

BY:



RICHARD P. LOMURRO

DATED: December 16, 2019